

since it opened in 2003 it has been openly and continuously maintained, improved, and developed by Tonopalo, including open and obvious blocked access to the easement area, including substantial improvements and structures, and “no one has ever been able to access the beach by going through this area, as it is completely blocked off.” (SSUMF Nos. 22–27.) Defendant and its members pay the property taxes for the Tonopalo parcel, including the easement area. (SSUMF No. 24.) This sufficiently shows, for the purposes of defendant’s initial burden, that the easement has been extinguished by adverse possession.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. While plaintiff argues that a written easement agreement prevents adverse possession claims by establishing permissive use, an easement created by grant may be extinguished by adverse possession where the owner of the servient tenement nonpermissively erects and maintains permanent obstructions over the easement for the five-year period. (*Glatts v. Henson* (1948) 31 Cal.2d 368, 370–71.) Here, the erecting of structures over the easement area so as to block beach access is clearly without permission. Plaintiff falls short of its burden to show one or more triable issues of material fact as to adverse possession.

Defendant also contends plaintiff’s claim is time barred by any applicable statute of limitations. In light of the court’s above ruling on adverse possession which completely disposes of the only cause of action for declaratory relief, the court need not and does not render a decision on whether the action is barred by an applicable statute of limitations.

Based on the foregoing, defendant has shown entitlement to judgment and the motion for summary judgment is granted.

10. S-CV-0052963 Bardelmeier, Julie M v. Land Ocean Inc.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff seeks preliminary approval of the parties’ class action and PAGA settlement agreement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement (Kim Decl., Exh. 1) and plaintiff's moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as "all non-exempt, hourly-paid employees that worked for defendant in California during the Settlement Class Period, which is the period from June 6, 2020, through March 10, 2025."

The court preliminarily approves the settlement agreement attached as Exhibit 1 to the Kim declaration and approves the proposed form of the notice attached as Exhibit A to Exhibit 1 to the Kim declaration, with one change: on page 7 or 8, the final approval hearing is listed as being in Department 40 rather than Department 42. The proposed notice shall be changed to designate Department 42 rather than Department 40. With this change, the proposed notice is approved.

The court appoints and designates Julie M. Bardelmeier as the class representative. The court appoints and designates D.Law, Inc. as class counsel for settlement purposes only. The court appoints and designates ILYM Group, Inc. as the settlement administrator.

The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion.

The final approval hearing is scheduled for **November 24, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b). Tentative ruling procedures pursuant to Local Rule 20.2.3 will apply to the motion for final approval.

Case Management Conference

In light of the court's above ruling on the motion for preliminary approval, no appearance is required for the Case Management Conference and no future Case Management Conferences are scheduled at this time.

11. S-CV-0053111 LeRoy, Joseph v. Pickett, Ryan A

The motion for judgment on the pleadings is continued to **May 5, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

12. S-CV-0053338 Demas, John v. Saetes, Peter

The motion for charging order and motion for attorneys' fees are both continued to **June 16, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.